

SENATE No. 2529

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, June 12, 2025.

The committee on Senate Ways and Means to whom was referred the House Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects. (House, No. 4151), - reported, in part, a "Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects." (Senate, No. 2529). (Direct Appropriations: \$52,563,008.00)

For the committee,
Michael J. Rodrigues

SENATE No. 2529

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects..

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to to make supplemental appropriations for fiscal year 2025 and to make certain changes in law, each of which is immediately necessary to carry out those appropriations or to accomplish other important public purposes, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for supplementing certain items in the general appropriation act
2 and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby
3 appropriated from the General Fund unless specifically designated otherwise in this act or in
4 those appropriation acts, for the several purposes and subject to the conditions specified in this
5 act or in those appropriation acts, and subject to the laws regulating the disbursement of public
6 funds for the fiscal year ending June 30, 2025. These sums shall be in addition to any amounts
7 previously appropriated and made available for the purposes of those items. These sums shall be
8 made available through the fiscal year ending June 30, 2026.

9 SECTION 2.

10	EXECUTIVE OFFICE OF VETERANS' SERVICES	
11	1410-0400 Veterans' Benefits	\$5,800,000
12	OFFICE OF THE COMPTROLLER	
13	1599-3384 Settlements and Judgments	\$28,917,460
14	EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES	
15	1595-1068 Medical Assistance Trust Fund.....	\$134,498,420
16	Department of Public Health	
17	4513-1012 Women Infants and Children Program Manufacturer Rebates...	\$400,000
18	4590-0912 Western Massachusetts Hospital Retained Revenue.....	\$1,200,000
19	Executive Office of Aging and Independence	
20	9110-1630 Home Care Services.....	\$60,000,000
21	EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES	
22	Office of the Secretary of Housing and Livable Communities	
23	7004-9316 Residential Assistance for Families in Transition.....	\$42,910,506
24	EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY	
25	State Police	
26	8100-0006 Private Detail Retained Revenue.....	\$7,750,000

27 8100-1004 State Police Crime Laboratory.....\$4,193,083

28 Military Division

29 8700-0001 Military Division.....\$593,539

30 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
31 provide for an alteration of purpose for current appropriations, and to meet certain requirements
32 of law, the sums set forth in this section are hereby appropriated from the General Fund or the
33 Transitional Escrow Fund established in section 16 of chapter 76 of the acts of 2021, as amended
34 by section 4 of chapter 98 of the acts of 2022, unless specifically designated otherwise in this
35 section, for the several purposes and subject to the conditions specified in this section, and
36 subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30,
37 2025. Except as otherwise stated, these sums shall be made available through the fiscal year
38 ending June 30, 2026.

39 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

40 Office of the Secretary

41 4000-1202 For the distribution of funds for fiscally strained hospitals; provided, that
42 notwithstanding any general or special law to the contrary, the executive office of health and
43 human services shall direct payments to eligible acute care hospitals in the form of enhanced
44 Medicaid payments, supplemental payments or other appropriate mechanisms; provided further,
45 that not less than \$75,000,000 shall be distributed to eligible acute care hospitals licensed under
46 section 51 of chapter 111 of the General Laws that have: (i) a public payer mix greater than 75
47 per cent, as calculated by the center for health information and analysis according to hospital

fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (ii) a statewide relative price less than 1.0, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; and (iii) a negative operating margin, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; provided further, that not less than \$50,000,000 shall be distributed to eligible acute care hospitals licensed under said section 51 of said chapter 111 that have: (a) a public payer mix greater than 63 per cent and not more than 75 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (b) a statewide relative price less than 1.0, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; and (c) a negative operating margin, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; provided further, that not less than \$30,000,000 shall be distributed to eligible acute care hospitals licensed under said section 51 of said chapter 111 that: (1) have a public payer mix greater than 63 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; (2) have a statewide relative price less than 1.0, as calculated by the center for health information and analysis according to calendar year 2022 data published in its Relative Price and Provider Price Variation Databook; and (3) are not otherwise eligible for funding pursuant to the prior provisos; provided further, that not less than \$19,000,000 shall be distributed to eligible acute care hospitals licensed under said section

51 of said chapter 111 that: (A) have a public payer mix greater than 63 per cent, as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; and (B) are not otherwise eligible for funding under this item pursuant to prior provisos; provided further, that the total payment amount to each eligible acute care hospital under this item shall be calculated based on the total amount available for the group of eligible acute care hospitals multiplied by a fraction, the numerator of which is the acute care hospital's Medicaid gross patient service revenue as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook and the denominator of which is the total amount of Medicaid gross patient service revenue for the group of acute care hospitals eligible for said amount available as calculated by the center for health information and analysis according to hospital fiscal year 2023 data published in its Massachusetts Acute Hospital Profiles Databook; provided further, that said payments shall not be used in subsequent years by the executive office to calculate any other payment to eligible acute care hospitals; provided further, that said payments shall not offset existing Medicaid or other state payments which an eligible acute care hospital may be qualified to receive; provided further, that the secretary of health and human services may require as a condition of receiving payment under this item any reasonable condition of payment that the secretary determines necessary to ensure the availability, to the extent possible, of federal financial participation for the payments, and the executive office may incur expenses and the comptroller may certify amounts for payment in anticipation of expected receipt of federal financial participation for the payments; provided further, that the executive office may promulgate regulations as necessary to implement this item; provided further, that not later than March 2, 2026, the executive office shall submit a

report to the joint committee on health care financing and the house and senate committees on ways and means detailing: (I) the schedule of payments to hospitals under this item delineated by acute care hospital, hospital system and payment amount; and (II) each hospital's intended use of funds provided under this item; and provided further, that eligible acute care hospitals shall provide the executive office with information necessary for the report.....\$174,000,000

4000-1998 For the distribution of funds for fiscally strained community health centers; provided, that for the purposes of this item, "eligible community health center" shall be defined as any entity receiving funding pursuant to 42 U.S.C. section 254b that demonstrates significant financial need based on criteria established by the secretary of health and human services in consultation with The Massachusetts League of Community Health Centers, Inc.; provided further, that notwithstanding any general or special law to the contrary, the executive office of health and human services shall direct payments to eligible community health centers in the form of enhanced Medicaid payments, supplemental payments or other appropriate mechanisms; provided further, that said payments shall not be used in subsequent years by the executive office to calculate any other payment to eligible community health centers; provided further, that such payments shall not offset existing Medicaid or other state payments which an eligible community health center may be qualified to receive; provided further, that the secretary may require as a condition of receiving payment any such reasonable condition of payment that the secretary determines necessary to ensure the availability, to the extent possible, of federal financial participation for the payments and the executive office may incur expenses and the comptroller may certify amounts for payment in anticipation of expected receipt of federal financial participation for the payments; and provided further, that the executive office may promulgate regulations as necessary to implement this item.....\$35,000,000

117 Department of Transitional Assistance

118 4400-1033 For the costs associated with the transition to chipped electronic benefits
119 transfer cards by the department of transitional assistance; provided, that at the direction of the
120 commissioner of transitional assistance, funds may be transferred from this item to item 4400-
121 1000 of section 2 of the general appropriations act for fiscal years 2025, 2026 or 2027; provided
122 further, that any unexpended funds available after the completion of the transition to chipped
123 electronic benefits transfer cards shall be expended on reimbursements to clients who have had
124 their federal supplemental nutrition assistance program payments stolen through electronic
125 benefit transfer card skimming, card cloning or other similar fraudulent electronically-based
126 method; and provided further, that funds appropriated in this item shall be made available for
127 these purposes through the fiscal year ending June 30, 2027.....\$15,500,000

128 Department of Public Health

129 4510-0794 For grants to reimburse municipalities for extraordinary emergency
130 medical service costs; provided, that funds in this item shall be administered by the department
131 of public health and shall be reimbursed based on eligibility criteria established by the
132 department; provided further, that not less than \$5,000,000 shall be distributed as grants to the
133 fire departments in the towns of Ashby, Ayer, Boxborough, Groton, Harvard, Littleton,
134 Lunenburg, Pepperell, Shirley, Townsend, Westford, the city of Leominster and the Devens fire
135 department established pursuant to chapter 498 of the acts of 1993; provided further, that said
136 funds shall be distributed based on criteria established by the department that shall consider the
137 following: (i) the proportional share of emergency medical call volume among the departments
138 eligible for these funds; (ii) the increased distance travelled to the nearest emergency department

139 caused by the closure of Nashoba Valley Medical Center; and (iii) increased overtime costs
140 incurred by the departments eligible for these funds; provided further, that not later than
141 December 13, 2025, the department shall submit a report to the house and senate committees on
142 ways and means which shall include, but shall not be limited to, the expenditures and planned
143 expenditures from this item delineated by recipient; and provided further, that funds in this item
144 shall be made available until June 30, 2027.....\$10,000,000

145 EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES

146 Office of the Secretary of Housing and Livable Communities

147 1595-1779 For a transfer to the Fair Housing Fund established in section 2JJJJJ of
148 chapter 29 of the General Laws.....\$1,000,000

149 SECTION 3. Section 65 of chapter 3 of the General Laws, as appearing in the 2022
150 Official Edition, is hereby amended by adding the following paragraph:-

151 There shall be a Senate Artistic Upgrade and Representation Fund, which shall be used,
152 without further appropriation, for purposes, including, but not limited to, upgrading and restoring
153 historical and artistic qualities of quarters in the state house used by the members of the senate
154 and its employees. The chief financial officer of the senate shall administer the fund. The fund
155 shall consist of appropriations authorized by the general court and specifically designated to be
156 credited to the fund; provided, however, that items authorized to be transferred under section 7M
157 of chapter 29 may be transferred to the fund by the chief financial officer of the senate. The fund
158 shall not be subject to section 13A of said chapter 29 and any unexpended balance in the fund at
159 the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure

in subsequent fiscal years. An accounting of all fund activity shall be reported in the annual fiscal year audit conducted pursuant to applicable senate rules.

SECTION 4. Section 40 of chapter 6 of the General Laws, as so appearing, is hereby amended by striking out subsection (d) and inserting in place thereof the following subsection:-

(d) The boards of trustees for each state-operated veterans' home may receive donations to benefit state-operated veterans' homes and the state treasurer shall receive, deposit and invest all such donations. The trustees may expend the donated funds for the direct benefit of the veterans who reside in the state-operated veterans' homes, acting as fiduciaries with the care, skill and diligence that a prudent person would use.

SECTION 5. Section 61 of chapter 7 of the General Laws, as so appearing, is hereby amended by striking out, in line 132, the words "March 15" and inserting in place thereof the following words:- June 1.

SECTION 6. Paragraph (1) of subsection (b) of section 13V of chapter 23A of the General Laws, as inserted by section 42 of chapter 140 of the acts of 2024, is hereby amended by striking out the words "15 members: 3 past or current members of the house of representatives, 2 of whom shall be appointed by the speaker of the house of representatives and 1 of whom shall be appointed by the minority leader of the house of representatives; 3 past or current members of the senate, 2" and inserting in place thereof the following words:- members: 4 past or current members of the house of representatives, 3 of whom shall be appointed by the speaker of the house of representatives and 1 of whom shall be appointed by the minority leader of the house of representatives; 4 past or current members of the senate, 3.

SECTION 7. Section 16 of chapter 23D of the General Laws is hereby amended by striking out, in line 2, as appearing in the 2022 Official Edition, the words “Growth Capital Corporation” and inserting in place thereof the following words:- Development Finance Agency

SECTION 8. Section 1 of chapter 23G of the General Laws is hereby amended by striking out the definition of “Massachusetts Growth Capital Corporation”, inserted by section 51 of chapter 238 of the acts of 2024, and inserting in place thereof the following definition:-

“Massachusetts Growth Capital Corporation”, the Massachusetts Growth Capital Corporation, the power, functions, assets and liabilities of which have been merged into the Massachusetts Development Finance Agency.

SECTION 9. Subsection (l) of section 2 of said chapter 23G, as most recently amended by section 55 of chapter 238 of the acts of 2024, is hereby further amended by striking out the first sentence and inserting in place thereof the following sentence:- The agency shall be the successor to the Massachusetts Growth Capital Corporation.

SECTION 10. Said section 2 of said chapter 23G, as so amended, is hereby further amended by striking out subsection (m).

SECTION 11. Section 3 of said chapter 23G is hereby further amended by striking out clause (36), as appearing in section 56 of chapter 238 of the acts of 2024, and inserting in place thereof the following clause:-

(36) to borrow money by the issuance of debt obligations whether tax exempt or taxable and secure such obligations by the pledge of its revenues or the revenues, mortgages and notes of others;

SECTION 12. Said section 3 of said chapter 23G is hereby further amended by striking out, in line 236, as appearing in the 2022 Official Edition, the words “, to administer trusts”.

SECTION 13. Section 8 of said chapter 23G, as so appearing, is hereby amended by inserting after the word “directors”, in line 134, the following words:- or a duly authorized committee of the board.

SECTION 14. Section 29A of said chapter 23G, as so appearing, is hereby amended by striking out, in line 221, the words “convene on a monthly basis in order to”.

SECTION 15. Subsection (b) of section 48 of said chapter 23G, as added by section 58 of chapter 238 of the acts of 2024, is hereby amended by striking out, the word “corporation”, the first time it appears, and inserting in place thereof the following word:- agency.

SECTION 16. Chapter 29 of the General Laws is hereby amended by inserting after section 2JJJJJ the following section:-

Section 2KKKKKK. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Office of the Inspector General Recovery Fund, which shall be administered by the inspector general. The fund shall be credited with any money payable to the inspector general from civil recoveries, settlement funds or recoupment of administrative and investigatory costs and any interest earned from money in the fund.

(b) Amounts credited to the fund shall be expended, without further appropriation, for the office of the inspector general’s operational, administrative and investigatory purposes.

(c) The unexpended balance in the fund at the end of a fiscal year shall not revert to the General Fund and shall be available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point.

SECTION 17. Section 39M of chapter 30 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in lines 21, 54, 57, 63, 66 and 154, the figure “\$50,000” and inserting in place thereof, in each instance, the following figure:- \$75,000.

SECTION 18. Said section 39M of said chapter 30, as so appearing, is hereby further amended by striking out, in line 67, the figure “\$150,000” and inserting in place thereof the following figure:- \$250,000.

SECTION 19. Section 39R of said chapter 30, as so appearing, is hereby amended by striking out, in lines 10 and 17, the words “one hundred thousand dollars” and inserting in place thereof, in each instance, the following figure:- \$250,000.

SECTION 20. The definition of “Public service corporation” in section 1A of chapter 40A of the General Laws, inserted by section 36 of chapter 239 of the acts of 2024, is hereby amended by striking out the words “facilities including pipelines” and inserting in place thereof the following words:- facilities, including pipelines.

SECTION 21. Section 64A of chapter 60 of the General Laws, as inserted by section 93 of chapter 140 of the acts of 2024, is hereby amended by striking out the figure “14” and inserting in place thereof the following figure:- 30.

SECTION 22. Section 68 of said chapter 60, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 9, the word “sixteen” and inserting in place thereof the following figure:- 8.

SECTION 23. Section 7I of chapter 90 of the General Laws, as so appearing, is hereby amended by inserting after the word “vehicles”, in line 8, the following words:- and vehicles operated by the Massachusetts emergency management agency.

SECTION 24. Section 1 of chapter 90F of the General Laws, as so appearing, is hereby amended by striking out, in line 65, the words “(49 App. USC 1801 et seq.) and” and inserting in place thereof the following words:- , 49 U.S.C. 5101 et seq., and.

SECTION 25. Section 4 of said chapter 90F, as so appearing, is hereby amended by striking out, in line 17, the words “of from \$2,750 to \$11,000 inclusive” and inserting in place thereof the following words:- pursuant to subsection (b)(2) of Appendix B to 49 C.F.R. 386.

SECTION 26. Said section 4 of said chapter 90F, as so appearing, is hereby further amended by striking out, in lines 22 and 23, the words “of not more than \$10,000” and inserting in place thereof the following words:- pursuant to subsection (b)(3) of Appendix B to 49 C.F.R. 386.

SECTION 27. Section 9 of said chapter 90F is hereby amended by striking out paragraph (D), as so appearing, and inserting in place thereof the following paragraph:-

(D) Any person shall be disqualified from operating a commercial motor vehicle for life for: (i) using a commercial motor vehicle in the commission of any felony involving the manufacture, distribution or dispensing of a controlled substance or possession with intent to

262 manufacture, distribute or dispense a controlled substance; or (ii) using a commercial motor
263 vehicle in the commission of any felony involving trafficking in persons or organs as prohibited
264 by sections 50, 51 or 53 of chapter 265 or any felony involving an act or practice of severe forms
265 of trafficking in persons, as defined in 22 U.S.C. 7102(11).

266 SECTION 28. Said section 9 of said chapter 90F is hereby further amended by striking
267 out, in lines 66 and 67, as so appearing, the words “of not less than \$1,100 and not more than
268 \$2,750” and inserting in place thereof the following words:- pursuant to subsection (b)(1) of
269 Appendix B to 49 C.F.R. 386.

270 SECTION 29. Chapter 111 of the General Laws is hereby amended by adding the
271 following section:-

272 Section 249. (a) For the purposes of this section, the definitions in section 1 of chapter
273 94C shall apply unless the context clearly requires otherwise.

274 (b) At the commissioner’s discretion, the department may authorize a pharmacy operated
275 by the department to distribute controlled substances to health care providers and entities legally
276 authorized to administer, possess, distribute, deliver or dispense controlled substances for the
277 benefit of any person, whether or not the person is under the custody, care or supervision of an
278 agency of the commonwealth and in accordance with applicable law, including, but not limited
279 to, applicable controlled substances registration requirements; provided, however, that such
280 controlled substances shall be: (i) related to the provision of reproductive health care services, as
281 defined in section 111½ of chapter 12; or (ii) distributed to ensure access to controlled substances
282 needed to provide treatment in the event of a public health emergency declared pursuant to
283 section 2A of chapter 17; and provided further, that in exercising the authority granted under this

section, the department shall be exempt from obtaining a pharmacy license in accordance with section 39 of chapter 112.

SECTION 30. Chapter 118E of the General Laws is hereby amended by striking out section 6, as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

Section 6. (a) There shall be a MassHealth program advisory committee to advise the executive office on matters of concern related to policy development and matters related to effective program administration. The assistant secretary for MassHealth or a designee shall select members for the advisory committee on a rotating and continuous basis in such numbers and for such terms as the executive office deems appropriate.

(b) The MassHealth program advisory committee shall include at a minimum: (i) 1 member of the MassHealth member advisory committee; (ii) 1 member of a state or local consumer group or other community-based organization that represents the interests of, or provides direct services to, MassHealth beneficiaries; (iii) 1 clinical provider or administrator who is familiar with the health and social needs of MassHealth beneficiaries and with the resources available and required for their care, including, but not limited to, providers or administrators of primary care, specialty care and long-term care; (iv) as applicable, 1 member of a Medicaid-participating managed care entity, including, but not limited to, managed care organizations, accountable care partnership plans, primary care accountable care organizations, one care plans, senior care options plans, the behavioral health vendor or the primary care clinician plan; and (v) 1 member of any other state agency that serves MassHealth beneficiaries, who shall serve as an ex officio, non-voting member.

(c) The executive office shall provide the committee with such staff and technical assistance as necessary to enable the committee to make effective recommendations and such financial arrangements as necessary to make possible the participation of recipient members.

(d) Annually, not later than October 1, the office of Medicaid shall report to the joint committee on health care financing and the house and senate committees on ways and means on the activities of the MassHealth program advisory committee in the previous fiscal year. The report shall include, but shall not be limited to, the names and titles of committee members, dates of committee meetings, agendas and minutes or notes from such meetings and any correspondence, memorandum, recommendations or other product of the committee's work. MassHealth member advisory committee members shall have the option to omit their names from the report.

SECTION 31. Said chapter 118E is hereby further amended by striking out section 9F, as so appearing, and inserting in place thereof the following section:-

Section 9F. (a) As used in this section, the following words shall have the following meanings, unless the context clearly requires otherwise,:

"Dually eligible", or "dually eligible individual", a person who is not less than 21 years of age and not more than 65 years of age at the time of enrollment in a dual eligible managed care organization and who is enrolled in both Medicare and MassHealth.

"Dual eligible managed care organization", a comprehensive network of medical, health care and long-term services and supports providers that integrates all components of care, either directly or through subcontracts, and has been contracted with by the executive office to provide services to dually eligible individuals under this section.

(b) The secretary of health and human services may establish, subject to appropriation, all required federal approvals and agreements and the availability of federal financial participation, a health care program for dually eligible individuals, aged 21 to 64 at the time of enrollment, who are dually eligible for benefits under MassHealth Standard or CommonHealth and Medicare under Title XVIII of the Social Security Act and who do not have any additional comprehensive health coverage. Under the program, the executive office may contract to provide integrated, comprehensive Medicaid and Medicare services, including medical, behavioral health and long-term support services for a capitated payment.

(c) Notwithstanding any general or special law to the contrary, the secretary of health and human services may review a request for financial solvency certification by a care delivery organization based in the commonwealth applying to serve as a Medicare plan caring for residents who are dually eligible for Medicare and Medicaid. Upon determination that appropriate financial standards, which may be the standards already in place for organizations with contracts pursuant to this section, have been met, the secretary of health and human services shall so certify to the centers for Medicare and Medicaid services. The secretary of health and human services may require the requesting organization to pay a reasonable certification fee.

(d) Members of the MassHealth managed care program integrating care for dually eligible individuals shall be provided an independent community care coordinator by the dual eligible managed care organization, who shall be a participant in the member's care team. The community care coordinator shall assist in the development of a long-term support and services care plan. The community care coordinator shall: (i) participate in initial and ongoing assessments of the health and functional status of the member, including determining appropriateness for long-term care support and services, either in the form of institutional or

community-based care plans and related service packages necessary to improve or maintain enrollee health and functional status; (ii) arrange and, with the agreement of the member and the care team, coordinate appropriate institutional and community long-term supports and services, including assistance with the activities of daily living and instrumental activities of daily living, housing, home-delivered meals, transportation and, under specific conditions or circumstances established by the dual eligible managed care organization, authorize a range and amount of community-based services; and (iii) monitor the appropriate provision and functional outcomes of community long-term care services, according to the service plan as deemed appropriate by the member and the care team, and track member satisfaction and the appropriate provision and functional outcomes of community long-term care services, according to the service plan as deemed appropriate by the member and the care team.

(e) The dual eligible managed care organization shall not have a direct or indirect financial ownership interest in an entity that serves as an independent care coordinator. Providers of institutional or community based long-term services and supports on a compensated basis shall not function as an independent care coordinator; provided, however, that the secretary may grant a waiver permitting a provider of institutional or community based long-term services and supports on a compensated basis to function as an independent care coordinator upon a finding that public necessity and convenience require such a waiver. For the purposes of this section, an organization compensated to provide only evaluation, assessment, coordination, skills training, peer support and fiscal intermediary services shall not be considered a provider of long term services and supports.

SECTION 32. Section 10H1/2 of said chapter 118E, inserted by section 2 of chapter 388 of the acts of 2024, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage for the treatment of Down syndrome through medically necessary speech therapy, occupational therapy, physical therapy and, for individuals not more than 21 years of age, applied behavior analysis services.

SECTION 33. Said chapter 118E is hereby further amended by adding the following section:-

Section 87. Notwithstanding any general or special law to the contrary, the executive office may directly pay state agencies, including county correctional facilities and department of correction facilities operated by such state agencies, for claims related to Medicaid under Title XIX of the Social Security Act, the Children's Health Insurance Program under Title XXI of the Social Security Act, the health safety net office under sections 64 to 69, inclusive, the Children's Medical Security Plan established pursuant to section 10F and other similar healthcare programs; provided, however, that such state agencies meet all applicable conditions of participation in said programs, as determined by the executive office in its sole discretion.

SECTION 34. Section 131M of chapter 140 of the General Laws, as appearing in section 71 of chapter 135 of the acts of 2024, is hereby further amended by striking out subsection (e) and inserting in place thereof the following subsection:-

(e) This section shall not apply to transfer or possession by: (i) a qualified law enforcement officer or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended; (ii) a law enforcement officer as defined in section 1 of chapter 6E who is currently certified or recertified pursuant to section 4 of said chapter 6E; (iii) a federal, state or local law enforcement agency; or (iv) a federally licensed manufacturer solely for sale or transfer in another state or for export.

SECTION 35. Section 29 of chapter 149 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in line 6, the figure “\$25,000” and inserting in place thereof the following figure:- \$50,000.

SECTION 36. Section 44A of said chapter 149, as so appearing, is hereby amended by striking out, in lines 61, 80, 84 and 100, the figure “\$50,000” and inserting in place thereof, in each instance, the following figure:- \$75,000.

SECTION 37. Said section 44A of said chapter 149, as so appearing, is hereby further amended by striking out, in lines 101 and 112, the figure “\$150,000” and inserting in place thereof, in each instance, the following figure:- \$250,000.

SECTION 38. Section 44F of said chapter 149, as so appearing, is hereby amended by striking out, in lines 6 and 42, the figure “\$25,000” and inserting in place thereof, in each instance, the following figure:- \$50,000.

SECTION 39. The second paragraph of subsection (j) of section 10 of chapter 269 of the General Laws, as most recently amended by section 123 of chapter 135 of the acts of 2024, is hereby further amended by striking out the words “or a qualified retired law enforcement officer,

as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended” and inserting in place thereof the following words:- , a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended or a law enforcement officer as defined in section 1 of chapter 6E who is currently certified or recertified pursuant to section 4 of said chapter 6E.

SECTION 40. Subsection (k) of said section 10 of said chapter 269, inserted by section 124 of said chapter 135, is hereby amended by striking out paragraph (5) and inserting in place thereof the following paragraph:-

(5) This subsection shall not apply to a law enforcement officer as defined in section 1 of chapter 6E who is currently certified or recertified pursuant to section 4 of said chapter 6E, a qualified law enforcement officer or a qualified retired law enforcement officer as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended or to a security guard employed at the prohibited area while at the location of their employment and during the course of their employment. Nothing in this paragraph shall limit the authority of any municipality, county or department, division, commission, board, agency or court of the commonwealth to adopt policies further restricting the possession of firearms in areas under their control.

SECTION 41. Subsection (d) of section 81 of chapter 179 of the acts of 2022 is hereby amended by striking out paragraphs (5) and (6), as appearing in section 103 of chapter 239 of the acts of 2024, and inserting in place thereof the following 2 paragraphs:-

(5) Not later than 12 months after the completion of each assessment, each electric distribution company may submit to the department of public utilities its plan and an application to revise its rates to account for the additional distribution infrastructure included in the plan pursuant to paragraph (4). The application shall include: (i) testimony that explains how the application is consistent with the plan pursuant to said paragraph (4); (ii) an explanation of the need for each distribution infrastructure investment; (iii) supporting documentation demonstrating that the actual or estimated costs for each distribution infrastructure investment are reasonable; and (iv) the actual or estimated in-service date of the distribution infrastructure investment. Such application shall be preliminarily approved by the department of public utilities not later than 6 months after submission; provided, however, that the requested rate revision is consistent with the department's practices and incremental costs are not otherwise accounted for in the electric distribution company's existing rates. The department's review of such application shall not be construed as a prudence review. The electric distribution company's application shall be deemed approved if the department does not act within 6 months after the application is submitted.

(6) The department of public utilities shall review the additional distribution infrastructure investments planned pursuant to paragraph (4) during the next general rate case of the electric distribution company. Each electric distribution company shall be entitled to cost recovery of such infrastructure investments where the electric distribution company demonstrates: (i) how it evaluated advanced transmission technologies, energy storage, other infrastructure investments and alternatives other than infrastructure investments to satisfy projected demand; (ii) that the proposed infrastructure investments were cost effective compared with the alternatives, provide net benefits for customers and meet the criteria enumerated in

clauses (i) to (vi), inclusive, of subsection (a) of said section 92B of said chapter 164; and (iii) that the expenses are incremental to the costs already recovered through base distribution rates or recovered through reconciling mechanisms. The department may, as necessary, require customers to be credited for any change in rates made pursuant to paragraph (5) with interest.

SECTION 42. Item 0910-0210 of section 2 of chapter 140 of the acts of 2024 is hereby amended by adding the following words:- ; provided further, that notwithstanding any general or special law to the contrary, funds may be collected in the prior fiscal year for service programs or activities delivered during the next fiscal year; and provided further, that any unspent balance at the close of the current fiscal year up to the limit established under this item shall remain in the account and may be expended for the purposes of this item in the following fiscal year.

SECTION 43. Item 4513-1012 of said section 2 of said chapter 140 is hereby amended by striking out the figure “\$27,400,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$27,800,000.

SECTION 44. Item 4590-0912 of said section 2 of said chapter 140 is hereby amended by striking out the figure “\$27,995,640”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$29,195,640.

SECTION 45. Item 8100-0006 of said section 2 of said chapter 140 is hereby amended by striking out the figure “\$37,250,000”, each time it appears, and inserting in place thereof, in each instance, the following figure:- \$45,000,000.

SECTION 46. Item 9110-1630 of said section 2 of said chapter 140 is hereby amended by adding the following words:- ; and provided further, that the secretary of aging and independence may transfer funds between items 9110-0600, 9110-1630 and 9110-1633.

482 SECTION 47. Item 1595-1068 of section 2E of said chapter 140, as most recently
483 amended by section 128 of chapter 248 of the acts of 2024, is hereby further amended by striking
484 out the figure “\$444,250,000” and inserting in place thereof the following figure:- \$539,980,000.

485 SECTION 48. Said item 1595-1068 of said section 2E of said chapter 140, as so
486 amended, is hereby further amended by striking out the figure “\$837,827,000” and inserting in
487 place thereof the following figure:- \$972,235,420.

488 SECTION 49. Section 217 of said chapter 140 is hereby amended by striking out the
489 figure “2025” and inserting in place thereof the following figure:- 2026.

490 SECTION 50. Subsection (d) of section 126 of chapter 150 of the acts of 2024 is hereby
491 amended by striking out the words “June 30” and inserting in place thereof the following words:-
492 December 31.

493 SECTION 51. The first sentence of section 293 of chapter 238 of the acts of 2024 is
494 hereby amended by striking out, each time they appear, the words “and officers”.

495 SECTION 52. Section 304 of said chapter 238 is hereby amended by striking out the
496 word “agriculture” and inserting in place thereof the following words:- public health.

497 SECTION 53. Said section 304 of said chapter 238 is hereby further amended by striking
498 out the figure “2025” and inserting in place thereof the following figure:- 2026.

499 SECTION 54. Chapter 239 of the acts of 2024 is hereby amended by striking out section
500 65 and inserting in place thereof the following section:-

Section 65. Said section 69J of said chapter 164, as so appearing, is hereby further amended by striking out the third paragraph and inserting in place thereof the following paragraph:-

A petition to construct a facility shall include, in such form and detail as the board shall from time to time prescribe: (i) a description of the facility, site and surrounding areas; (ii) an analysis of the need for the facility, either within or outside, or both within and outside the commonwealth, including a description of the energy benefits of the facility; (iii) a description of the alternatives to the facility, such as other methods of transmitting or storing energy, other site locations, other sources of electrical power or gas or a reduction of requirements through load management; (iv) a description of the environmental impacts of the facility, including both environmental benefits and burdens, that includes a description of efforts to avoid, minimize and mitigate burdens and efforts to enhance benefits, such as shared use, recreational paths or access to nature; (v) evidence that all pre-filing consultation and community engagement requirements established by the board have been satisfied and, if not, the applicant shall demonstrate good cause for a waiver of the requirements that could not be satisfied by the applicant; and (vi) a cumulative impact analysis. The board may issue and revise filing guidelines after public notice and a period for comment. Said filing guidelines shall require the applicant to provide minimum data for review related to climate change impact, land use impact, water resource impact, air quality impact, fire and other public safety risks, solid waste impact, radiation impact, noise impact and other public health impacts as determined by the board.

SECTION 55. Clause (v) of subsection (b) of section 118 of said chapter 239 is hereby amended by striking out the words “generating facility” and inserting in place thereof the following words:- energy storage system.

SECTION 56. Section 129 of said chapter 239 is hereby amended by striking out the figure “133” and inserting in place thereof the following figure:- 132.

SECTION 57. Item 3000-1142 of section 2A of chapter 248 of the acts of 2024 is hereby amended by striking out the word “between” and inserting in place thereof the following words:- from this item to.

SECTION 58. Chapter 390 of the acts of 2024 is hereby amended by striking out the words “public way within 3 miles of the vessel’s waterfront location of origin in the town of Barnstable and which may pass over the roadways of the town of Yarmouth; provided, however, that said vessel shall be trucked by a professional licensed boat hauler” and inserting in place thereof the following words:- locally owned or controlled public way within 3 miles of the vessel’s waterfront location of origin in the city known as the town of Barnstable and which may pass over the locally owned or controlled roadways of the town of Yarmouth; provided, however, that said vessel shall be trucked by a professional licensed boat hauler; provided further, that for the purposes of this section, public ways shall not include roadways owned or within the control of the Massachusetts Department of Transportation.

SECTION 59. Notwithstanding any general or special law to the contrary, sections 88 and 94 of chapter 140 of the acts of 2024 and section 21 shall only apply to land purchased or taken under a tax title on or after November 1, 2024.

SECTION 60. Notwithstanding sections 185A to 185E, inclusive, of chapter 140 of the General Laws, no person shall be required to be licensed to engage in the business of selling tickets or the business of reselling or facilitating a mechanism for 2 or more parties to participate

545 in the resale of any ticket of admission under said section 185A of said chapter 140 until January
546 1, 2026.

547 SECTION 61. Notwithstanding any general or special law to the contrary, the
548 comptroller shall transfer all funds currently in the inspector general expendable trust to the
549 Office of the Inspector General Recovery Fund established in section 2KKKKKK of chapter 29
550 of the General Laws not later than 90 days from the effective date of this act.

551 SECTION 62. Notwithstanding any general or special law to the contrary, any
552 unexpended balances, not to exceed a total of \$40,000,000, in items 4000-0700 and 4000-1426
553 of section 2 of chapter 140 of the acts of 2024 shall not revert to the General Fund until
554 September 1, 2025 and may be expended by the executive office of health and human services to
555 pay for services enumerated in said items 4000-0700 and 4000-1426 of said section 2 of said
556 chapter 140 provided during fiscal year 2025.

557 SECTION 63. Notwithstanding any general or special law to the contrary, for fiscal year
558 2025, the secretary of health and human services may, with the written approval of the secretary
559 of administration and finance, authorize transfers of surplus among items 4000-0320, 4000-0430,
560 4000-0500, 4000-0601, 4000-0641, 4000-0700, 4000-0875, 4000-0880, 4000-0885, 4000-0940,
561 4000-0950, 4000-0990, 4000-1400, 4000-1420 and 4000-1426.

562 SECTION 64. Notwithstanding the terms of any prior appropriation or any other general
563 or special law to the contrary, any unexpended funds appropriated to and held by the
564 Massachusetts Growth Capital Corporation shall be transferred to and expended by the
565 Massachusetts Development Finance Agency to ensure post-merger continuity of the agency's
566 programs.

SECTION 65. (a) There shall be a Health Safety Net Trust Fund task force to consider the funding and administration of the Health Safety Net Trust Fund established in section 66 of chapter 118E of the General Laws and administered pursuant to section 65 of said chapter 118E. The task force shall consist of: the assistant secretary for MassHealth or a designee, who shall serve as chair; the secretary of administration and finance or a designee; the commissioner of insurance or a designee; the executive director of the commonwealth connector or a designee; the senate and house chairs of the joint committee on health care financing; a representative from the Massachusetts Health and Hospital Association, Inc.; a representative from the Massachusetts Association of Health Plans, Inc.; a representative from Blue Cross Blue Shield of Massachusetts, Inc.; a representative from the Conference of Boston Teaching Hospitals, Inc.; 3 representatives, as determined by the division of medical assistance, that represent a hospital in each of the eastern, central and western Massachusetts regions with the greatest amount of health safety net disbursements in the most recent year of data; 2 representatives from the Massachusetts League of Community Health Centers, Inc.; a representative from the Massachusetts Taxpayers Foundation, Inc.; and a representative from Health Care For All, Inc.

(b) The task force shall review and make recommendations on the funding and administration of the Health Safety Net Trust Fund, including, but not limited to: (i) the reimbursement model for acute hospitals and community health centers for reimbursable health services provided to low-income, uninsured or underinsured residents; (ii) improving the long-term sustainability of the Health Safety Net Trust Fund; (iii) increasing the financial solvency of community health centers and acute hospitals delivering reimbursable health services to low-income, uninsured or underinsured residents; (iv) the scope of health services and pharmaceutical drugs that are eligible for reimbursement; (v) acute hospital eligibility criteria for

590 reimbursable health services; (vi) the impacts of federal statutory and regulatory changes on
591 health safety net programming; and (vii) expanding the enrollment of uninsured individuals who
592 receive health services reimbursed by said fund into health care plans and programs.

593 (c) Not later than April 1, 2026, the task force shall submit a report and recommendations
594 to the clerks of the senate and house of representatives, the joint committee on health care
595 financing and the house and senate committees on ways and means.

596 SECTION 66. The special commission established in section 149 of chapter 135 of the
597 acts of 2024 is hereby revived and continued and shall file its final report not later than
598 December 31, 2025.

599 SECTION 67. The special commission established in section 202 of chapter 140 of the
600 acts of 2024 is hereby revived and continued and shall file its final report not later than October
601 15, 2025.

602 SECTION 68. The special commission established in section 150 of chapter 178 of the
603 acts of 2024 is hereby revived and continued and shall file its final report not later than
604 December 31, 2025.

605 SECTION 69. The special commission established in section 152 of chapter 178 of the
606 acts of 2024 is hereby revived and continued and shall file its final report not later than
607 December 31, 2025.

608 SECTION 70. The task force established in section 5 of chapter 214 of the acts of 2024 is
609 hereby revived and continued and shall file its final report not later than November 15, 2025.

SECTION 71. The salary adjustments and other economic benefits authorized by the following collective bargaining agreements shall be effective for the purposes of section 7 of chapter 150E of the General Laws:

(1) the agreement between the Sheriff of Bristol County and the National Correctional Employees' Union, Local 103 (K-9 Unit), Unit SA7, effective from July 1, 2024 through June 30, 2027;

(2) the agreement between the Board of Trustees of the University of Massachusetts and Service Employees International Union, Local 888, Unit L95, effective from July 1, 2024 through June 30, 2027;

(3) the agreement between the Secretary of the Commonwealth and Service Employees International Union, Local 888 AFL/CIO on behalf of certain employees of the Suffolk Registry of Deeds, Unit SC2, effective from July 1, 2024 through June 30, 2027;

(4) the agreement between the Sheriff of Bristol County and the National Correctional Employees' Union, Local 103 (K-9 Unit), Unit SA7, effective from July 1, 2024 through June 30, 2027;

(5) the agreement between the Sheriff of Plymouth County and the New England Police Benevolent Association (NEPBA), Local 580 (BCI), Unit SP3, effective from July 1, 2024 through June 30, 2027;

(6) the agreement between the Sheriff of Norfolk County and the National Association of Government Employees, RI Local 202, Unit SN1, effective from July 1, 2024 through June 30, 2027;

631 (7) the agreement between the Sheriff of Norfolk County and the County Correctional
632 Officers Association, NEPBA Local 570, Unit SN3, effective from July 1, 2024 through June 30,
633 2027;

634 (8) the agreement between the Board of Higher Education and the Association of
635 Professional Administrators, MTA/NEA, Unit APA, effective from July 1, 2024 through June
636 30, 2027;

637 (9) the agreement between the Sheriff of Norfolk County and the County Correctional
638 Officers Association, NEPBA Local 575, Unit SN2, effective from July 1, 2024 through June 30,
639 2027;

640 (10) the agreement between the Sheriff of Hampshire County and the Hampshire Sheriff's
641 Office Treatment Association (SOTA), Unit SH6, effective from July 1, 2024 through June 30,
642 2027;

643 (11) the agreement between the Sheriff of Hampshire County and the Hampshire
644 Sheriff's Office Jail and House of Correction Supervisory Correctional Officers, Unit SH8,
645 effective from July 1, 2024 through June 30, 2027;

646 (12) the agreement between the Commonwealth of Massachusetts and the New England
647 Police Benevolent Association (NEPBA), Unit 4A, effective from July 1, 2024 through June 30,
648 2027;

649 (13) the agreement between the Sheriff of Barnstable County and NAGE-IBCO, Local
650 217, Unit S3B, effective from July 1, 2024 through June 30, 2027;

651 (14) the agreement between the University of Massachusetts and the American
652 Federation of State, County and Municipal Employees, Council 93, Local 1776, AFL-CIO, Unit
653 A01, effective from July 1, 2024 through June 30, 2027;

654 (15) the agreement between the University of Massachusetts and the American
655 Federation of State, County and Municipal Employees, Local 507/Council 93, AFL-CIO, Unit
656 D82, effective from July 1, 2024 through June 30, 2027;

657 (16) the agreement between the University of Massachusetts and the New England Police
658 Benevolent Association (NEPBA), Local 290, Unit B33, effective from July 1, 2024 through
659 June 30, 2027;

660 (17) the agreement between the University of Massachusetts and the New England Police
661 Benevolent Association (NEPBA), Local 285, Unit B3S, effective from July 1, 2024 through
662 June 30, 2027;

663 (18) the agreement between the Sheriff of Hampshire County and the Hampshire County
664 Sheriff's Office Non-Uniform Correctional Association, Unit SH7, effective from July 1, 2024
665 through June 30, 2027;

666 (19) the agreement between the Sheriff of Plymouth County and the New England Police
667 Benevolent Association (NEPBA), Local 193, Unit SP5, effective from July 1, 2024 through
668 June 30, 2027; and

669 (20) the agreement between the University of Massachusetts and the Massachusetts
670 Society of Professors, MTA/NEA, Unit A50, effective from July 1, 2024 through June 30, 2027.